

HOUSE No. 3953

The Commonwealth of Massachusetts

PRESENTED BY:

Kenneth P. Sweezey

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act in the town of Hanson local licenses and permits; denial, revocation or suspension for failure to comply with conditions of approval.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kenneth P. Sweezey</i>	<i>6th Plymouth</i>	<i>1/14/2025</i>

HOUSE No. 3953

By Representative Sweezey of Duxbury, a petition (accompanied by bill, House, No. 3953) of Kenneth P. Sweezey (by vote of the town) for legislation to enhance enforcement in building and permitting compliance in the town Hanson. Municipalities and Regional Government. [Local Approval Received.]

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4467 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act in the town of Hanson local licenses and permits; denial, revocation or suspension for failure to comply with conditions of approval.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The inspector of buildings or building commissioner, as defined in section 3
2 of chapter 143 of the General Laws, of the town of Hanson, or their designee, the planning board
3 of the town of Hanson, or the zoning board of the town of Hanson, each hereinafter the licensing
4 authority, may deny, revoke or suspend any license or permit, including renewals and transfers,
5 of any applicant for any license or permit, hereinafter an applicant, or any licensee or permit
6 holder, who has been determined by any public official or body entitled to set or enforce orders
7 of conditions for properties located within the town, hereinafter the conditioning authority, to
8 have not completed or complied with conditions of approvals for any other projects licensed or
9 permitted by the town. The licensing authority shall provide written notice to the applicant or

licensee or permit holder, within 14 days of the decision to deny, revoke or suspend, and shall grant the applicant or licensee or permit holder a hearing, to be held not earlier than 14 days after said notice.

SECTION 2. Any findings made by the licensing authority with respect to such license or permit denial, revocation or suspension under this act shall be made only for the purpose of such proceeding and shall not be relevant to or introduced in any other proceeding at law, except for any appeal from such denial, revocation or suspension. Any license or permit denied, suspended or revoked under this act shall not be reissued or renewed until the licensing authority receives a certificate issued by the conditioning authority that the applicant or licensee or permit holder complied with such conditions as of the date of issuance of said certificate.

SECTION 3. Any applicant or licensee or permit holder may enter into an agreement for a limitation to a license or permit, which may include a bond, escrow or other source of guarantee, thereby allowing the licensing authority to issue a certificate indicating said limitations to the license or permit, and the validity of said license or permit shall be conditioned upon the satisfactory compliance with said agreement. Failure to comply with said agreement shall be grounds for the suspension or revocation of said license or permit; provided, however, that the applicant or licensee or permit holder be given notice and a hearing as required pursuant to this act.

SECTION 4. The board of selectmen may waive such denial, suspension or revocation if it finds there is no direct or indirect business interest by the property owner, its officers or stockholders, if any, or members of their immediate family, as defined in section 1 of chapter

268A of the General Laws, in the business or activity conducted in or on said property that is the subject of the license or permit.

SECTION 5. This act shall not apply to the following licenses and permits: (i) open burning pursuant to section 13 of chapter 48 of the General Laws; (ii) bicycle permits pursuant to section 11B of chapter 85 of the General Laws; (iii) sales of articles for charitable purposes pursuant to section 33 of chapter 101 of the General Laws; (iv) children work permits pursuant to section 69 of chapter 149 of the General Laws; (v) clubs, associations dispensing food or beverage licenses pursuant to section 21E of chapter 140 of the General Laws; (vi) dog licenses pursuant to section 137 of said chapter 140 of the General Laws; (vii) fishing, hunting and trapping licenses pursuant to section 12 of chapter 131 of the General Laws; (viii) marriage licenses pursuant to section 28 of chapter 207 of the General Laws; or (ix) theatrical events and public exhibition permits pursuant to section 181 of said chapter 140 of the General Laws.